



SPONSOR: Rep. Morrison & Sen. Hansen
Reps. Gorman, Ortega, Burns; Sens. Hoffner, Cruce,
Wilson

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 250

AN ACT TO AMEND TITLE 21 OF THE DELAWARE CODE RELATING TO SPECIAL LICENSE PLATES.

1 WHEREAS, on the Fourth of July, 2026, our nation will commemorate and celebrate the Two Hundred and
2 Fiftieth anniversary of the signing of the Declaration of Independence; and

3 WHEREAS, Congress has established the United States Semiquincentennial Commission, and forty-three States
4 and Territories, including Delaware, have formed entities for purposes of commemorating this milestone anniversary; and

5 WHEREAS, the State of Delaware will also celebrate its separation from the State of Pennsylvania and from the
6 British Crown, an event that occurred on the 15th Day of June, 1776, and commemorated each year in the town of New
7 Castle as “Separation Day”; and

8 WHEREAS, from the earliest inhabitants of the land, through the development of Atlantic colonies, to Separation
9 Day and the Declaration of Independence, over the course of the American Revolution and to the ratification of the
10 Constitution of the United States—the peoples of the lands now called Delaware helped shape a country that has continued
11 for two and a half centuries; and

12 WHEREAS, this milestone anniversary provides an opportunity to reflect on Delaware’s unique history and the
13 contributions of its many diverse groups and peoples over the course of the history of the lands now called the United
14 States of America, beginning millennia before 1776 and continuing to the present day; and

15 WHEREAS, Delaware is home to many cultural, historical, educational, and community organizations who
16 expertly share our State’s rich history and its vibrant present with Delawareans and visitors alike; and

17 WHEREAS, as a part of this Separation Day/Semiquincentennial commemoration the General Assembly desires
18 to establish a new Delaware commemorative license plate to be made available to those Delawareans wishing to honor and
19 appropriately remember this special time in our state’s history.

20 NOW, THEREFORE:

21 BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE (Three-fifths of all
22 members elected to each house thereof concurring therein):

23 Section 1. Amend Subchapter II, Chapter 21, Title 21 of the Delaware Code by making deletions as shown by
24 strike through and insertions as shown by underline as follows:

25 § 2140T. Delaware's celebration of America's 250th anniversary special license plate.

26 (a) The owner of any vehicle described in subsection (b) of this section may apply to the Division of Motor
27 Vehicles ("Division") for a special Delaware 250 license plate. The Division shall issue the plate only if the Division
28 receives at least 200 applications for the plate.

29 (b) This section only applies to the following:

30 (1) A private passenger vehicle.

31 (2) Subject to paragraph (b)(2)b. of this section, a motor vehicle or trailer with a manufacturer's gross vehicle
32 weight rating ("GVWR") of 26,000 pounds or less.

33 a. The motor vehicle or trailer described in this paragraph (b)(2) may be owned by an individual or an
34 artificial entity, including a corporation, company, association, firm, partnership, society, or joint-stock company.

35 b. A motor vehicle that qualifies to register for the International Registration Plan ("IRP"), individually,
36 or as part of a combination of vehicles, may not be issued a special plate under this section.

37 (c)(1) On the initial application for a plate to be issued under this section, a 1-time fee of \$50, which includes an
38 administrative fee of \$15, is required in addition to the annual registration fee required by this title.

39 (2) The initial application fee under paragraph (c)(1) of this section is required for any person applying for the
40 plate, including a member of a non-profit organization, even if the member is exempt from registration fees under §
41 2159 of this title.

42 (3) A replacement plate may be obtained on payment of a fee to be set by the Division, which must cover the
43 cost of the plate.

44 (d) The Division shall deposit the 1-time administrative fee collected under subsection (c) of this section into a
45 special fund and use the fund for the purpose of promoting the sale of the plate and administering this section. Proceeds
46 remaining after the Division has covered the costs of promoting the sale of the plate and administering this section must be
47 applied under subsection (e) of this section.

48 (e)(1) The funds derived by the State from the portion of the 1-time fee of \$50 under subsection (c) of this section,
49 other than the funds spent by the Division under subsection (d) of this section, must be deposited by the Division with the
50 State Treasurer and must be specifically set aside in the name of Delaware 250 Fund for use by Delaware 250 in support of
51 Delaware's celebration of America's 250th anniversary.

52 (2) Delaware 250 may determine how to spend the moneys in the Delaware 250 Fund, including which
53 expenditures support Delaware's celebration of America's 250th anniversary.

54 (f) The design for all plates issued under this section must be submitted by Delaware 250 for final color and design
55 approval by the Division, and are subject to the following:

56 (1) The wording, "The First State", may be dropped and substituted with the wording "Delaware 250".

57 (2) A plate may not be solely black and white in color.

58 (3) The Division may refuse any design that it believes would cause a public safety enforcement problem.

59 (g) The numbers, letters, or both, assigned will be the same as the license plate assigned to the owner's vehicle at
60 the time of the application for the plate.

61 (h) The Division may promulgate regulations as required to administer this section.

SYNOPSIS

As a part of Delaware's commemoration of Delaware's 250th anniversary of Separation Day and America's semiquincentennial, this Act establishes a new background special license plate that will be made available to those Delawareans wishing to honor and appropriately remember this special time in our State's history.

A background special license plate supports a cause and is available for purchase by the public at large. The numbers, letters, or both, assigned will be the same as the license plate assigned to the owner's vehicle at the time of the application for the plate.

This Act requires a greater-than-majority vote for passage because Article VIII, § 11 of the Delaware Constitution requires the affirmative vote of 3/5 of the members elected to each house of the General Assembly when a new tax or license fee is imposed.